

Code: 1255

IN THE FAMILY DIVISION
OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA

IN AND FOR THE COUNT OF WASHOE

Megan McCafferty

Megan McCafferty

@1299452

Applicant,

Case No.

TPO16-01795

Dept No.

DM

vs.

Donovan Clark

@1299453

Adverse Party.

APPLICATION FOR A TEMPORARY AND/OR EXTENDED ORDER FOR PROTECTION AGAINST
DOMESTIC VIOLENCE

Please write or print clearly. Use black or dark blue ink.
Complete this Application to the best of your knowledge.

Applicant states the following facts under penalty of perjury:

1. Applicant's Date of Birth: 08/25/1991 Adverse Party's Date of Birth: 03/20/1985
Relationship: I am the EX FRANCE (for example, wife, ex-husband, girlfriend, father,
sister, etc.) of the Adverse Party.

(a) Length of relationship: 5 years

(b) Have you ever lived together? Yes ☒ No ☐ If so, how long? 4 yrs.

(c) Are you living together now? Yes ☐ No ☒

(d) Date of Separation: September 20th 2016.

(e) We have child(ren) TOGETHER: Yes ☒ or No ☐ If yes, where and with whom are
these child(ren) living? 6550 Payamto Way #37 Sparks NV with Megan McCafferty

2. My address is: ☐ CONFIDENTIAL. (If confidential, do not write address here)

☒ If address is not confidential, write below:

Address 6550 Payamto Way #37 Sparks NV 89436

11/09 10:21 AM waiting

City Sparks State NV Zip Code 89436

I ☐ own ☒ rent this residence. Lease/title is held in all the following name(s):

Donovan Clark / Megan McElFerty

How long have you been living in this residence? 3 years

3. Adverse Party's address is:

Address unknown

City _____ State _____ Zip Code _____

How long has the Adverse Party been living in this residence? 1 month

4. My place of employment is ☒ **CONFIDENTIAL**. (If confidential, do not write address here)

☐ If not confidential, state place(s) of employment:

Name of employer _____

Address: _____ Phone _____

City _____ County _____ State _____

Name of employer _____

Address: _____ Phone _____

City _____ County _____ State _____

Name of employer _____

Address: _____ Phone _____

City _____ County _____ State _____

5. Adverse Party's employer is: unknown

Address: _____ Phone _____

City _____ County _____ State _____

6. (a) The name(s) and date(s) of birth of the minor child(ren) of whom I am the parent, appointed guardian, or who live in my home, are as follows:

NAME (first and last)	DATE OF BIRTH	APPLICANT'S CHILD (Yes/No)	ADVERSE PARTY'S CHILD (Yes/No)	WHO CHILD LIVES WITH
1. Eva Kay Baldes	10-19-09	Circle one Yes ☒ No ☐	Circle one Yes ☐ No ☒	Megan McElFerty
2. Alexis Mary Clark	2-24-14	Circle one Yes ☒ No ☐	Circle one Yes ☒ No ☐	Megan McElFerty

NAME (first and last)	DATE OF BIRTH	APPLICANT'S CHILD (Yes/No)	ADVERSE PARTY'S CHILD (Yes/No)	WHO CHILD LIVES WITH
3.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	
4.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	
5.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	
6.		Circle one Yes ☐ No ☐	Circle one Yes ☐ No ☐	

(b) Have you or the Adverse Party ever been awarded custody/guardianship of the minor child(ren) by Court Order? ☐ Yes ☒ No

Who was awarded custody/guardianship? ☐ Applicant ☐ Adverse Party

By what Court? _____

Court Case No. (if known) _____

7. Please check the appropriate box, **IF YOU** or the **ADVERSE PARTY** have ever filed a case in any court for a ☐ Divorce, ☒ Custody, ☐ Paternity, ☒ Child Support, ☐ Guardianship, ☒ Order for Protection Against Domestic Violence, or ☐ Stalking/Harassment Order. Please indicate when and where the case(s) was filed, and list the case number(s) if known.

TDO 10/03/16 TDO 16-0155 child support 10/04/2016 custody 11/11/16

8. (a) Has CHILD PROTECTIVE SERVICES (CPS) ever been contacted regarding any member of the household in the past year? ☒ Yes ☐ No

(b) Is CPS currently involved with your family? ☒ Yes ☐ No

If yes, give details, including the caseworker's name:

Kelly Boyed is helping me and my children because we are victims of Domestic Violence

1 9. (a) Does the Adverse Party possess a firearm, or does the Adverse Party have a firearm under his
2 or her custody or control? ☐ Yes ☐ No ☒ I don't know

3 (b) Has the Adverse Party ever threatened, harassed, or injured you, the minor child(ren), or
4 anyone else with a firearm or any other weapon? ☒ Yes ☐ No ☐ I don't know

5 If yes, give details:

6 Threatened to kill me with a knife Destroyed Personal
7 Property Injured my cat in front of my children
8
9

10 10. (a) ☒ I have been or reasonably believe I will become a victim of domestic violence committed
11 by the Adverse Party.

12 (b) ☒ The child(ren) have been or are in danger of becoming a victim of domestic violence
13 committed by the Adverse Party.

14 In the following space, state the facts that support your Application. Be as specific as you can,
15 starting with the most recent incident. Include the approximate dates and locations, and whether
16 law enforcement or medical personnel have been involved.

17 THIS APPLICATION IS A PUBLIC RECORD

18 Today 11/9/16 Donovan forced entry By a window into my home
19 and stole my 2 year old daughters. 10/28/16 has gotten us
20 Evicted from our home. Shot Down all forms of money including
21 my child support card for Everkey Baldes; threats made over facebook
22 to my sister about him kidnapping my child and hurting me 10/18/16
23 turned off insurances so my child cant go to the doctor. 10/13/16
24 Sent a Blind female to bang on my door and tell me
25 "Im going to get whats mine 10/11/16 Contacted my ex Everkey
26 Paid to tell him where he can kidnapp her 10/6/16 Sent
27 a man to pound on my door and threaten me "Donovan going
28 for you you better watch your Back.. 10/5/16 Too serverd
he had all my locks changed 10/4/16 he had my phone turned
off 10/3/16 He had my locks changed Destroyed the house

1 Kicked my cat out of my house with steel toe boots threatened
2 me with a knife tried to run me over with his car
3 "I'll give you what's coming you will get yours Don't worry
4 your next" blue handled Box Cutter Style knife held in his
5 right hand Police report filed 10/21/16 Coan put us in a shelter
6 after Police left he had trapped us in the bathroom after
7 hitting me in the stomach yelling and fighting Cops were
8 called twice to my house on the 2nd 10/1/16 I am knocking on
9 Door trying to wake the kids up 2 PM comes back
10 gains entry to house corners me and hits me in the
11 stomach 9/27/16 kicked Donovan out of my home after
12 he admits to doing meth He makes Random trip to
13 Las Vegas 9/23/16 told I was wrong for going to the
14 food bank after Donovan Refuses to let me buy groceries
15 Excessive Drinking Everything 9/24/16 told I'm not allowed
16 to have contact with anyone but him he hit me for
17 calling my sister He leaves Every night Between 11-3 am
18 Continues to black out and pass out on the kitchen floor
19 8/24/16 Drunk Rapes me chokes me so I can't scream
20 8/14/16 Body shaming isolation 8/9/16 Verbal abuse in front
21 of children bruises/blisters Evaks back side drunk
22 Refuses to buy groceries for our house 7/17/16 changed locks
23 on me for going to store for groceries 6/3/16 stole and burned
24 my Diary "Not allowed to tell anyone what I had wrote
25 he needed to burn the Evidence" 6/2/16 told not to leave or
I will get hurt 5/5/16 Drunk Fight Raped Choked given a
Black eye 5/3/16 suicidal threats "I'll pin into a wall on my
motor cycle going 100 mph"

PLEASE DO NOT WRITE ON THE BACKS OF ANY PAGES.

If yes, WHEN and where?

☐ Yes ☐ No ☒ I don't know If yes, WHEN and where?

☒ (A) Prohibit the Adverse Party, either directly or through an agent, from threatening, physically injuring, or harassing me and/or the minor child(ren).

☒ (B) Prohibit the Adverse Party from any contact with me whatsoever.

☒ (C) Exclude the Adverse Party from my residence and order the Adverse Party to stay at least 100 yards away from my residence.

___ (D) Obtain law enforcement assistance to ___ accompany me to the following residence,

~~11555 1. 2. 3. 4. 5. 6. 7. 8. 9. 10. 11. 12. 13. 14. 15. 16. 17. 18. 19. 20. 21. 22. 23. 24. 25. 26. 27. 28. 29. 30. 31. 32. 33. 34. 35. 36. 37. 38. 39. 40. 41. 42. 43. 44. 45. 46. 47. 48. 49. 50. 51. 52. 53. 54. 55. 56. 57. 58. 59. 60. 61. 62. 63. 64. 65. 66. 67. 68. 69. 70. 71. 72. 73. 74. 75. 76. 77. 78. 79. 80. 81. 82. 83. 84. 85. 86. 87. 88. 89. 90. 91. 92. 93. 94. 95. 96. 97. 98. 99. 100. 101. 102. 103. 104. 105. 106. 107. 108. 109. 110. 111. 112. 113. 114. 115. 116. 117. 118. 119. 120. 121. 122. 123. 124. 125. 126. 127. 128. 129. 130. 131. 132. 133. 134. 135. 136. 137. 138. 139. 140. 141. 142. 143. 144. 145. 146. 147. 148. 149. 150. 151. 152. 153. 154. 155. 156. 157. 158. 159. 160. 161. 162. 163. 164. 165. 166. 167. 168. 169. 170. 171. 172. 173. 174. 175. 176. 177. 178. 179. 180. 181. 182. 183. 184. 185. 186. 187. 188. 189. 190. 191. 192. 193. 194. 195. 196. 197. 198. 199. 200. 201. 202. 203. 204. 205. 206. 207. 208. 209. 210. 211. 212. 213. 214. 215. 216. 217. 218. 219. 220. 221. 222. 223. 224. 225. 226. 227. 228. 229. 230. 231. 232. 233. 234. 235. 236. 237. 238. 239. 240. 241. 242. 243. 244. 245. 246. 247. 248. 249. 250. 251. 252. 253. 254. 255. 256. 257. 258. 259. 260. 261. 262. 263. 264. 265. 266. 267. 268. 269. 270. 271. 272. 273. 274. 275. 276. 277. 278. 279. 280. 281. 282. 283. 284. 285. 286. 287. 288. 289. 290. 291. 292. 293. 294. 295. 296. 297. 298. 299. 300. 301. 302. 303. 304. 305. 306. 307. 308. 309. 310. 311. 312. 313. 314. 315. 316. 317. 318. 319. 320. 321. 322. 323. 324. 325. 326. 327. 328. 329. 330. 331. 332. 333. 334. 335. 336. 337. 338. 339. 340. 341. 342. 343. 344. 345. 346. 347. 348. 349. 350. 351. 352. 353. 354. 355. 356. 357. 358. 359. 360. 361. 362. 363. 364. 365. 366. 367. 368. 369. 370. 371. 372. 373. 374. 375. 376. 377. 378. 379. 380. 381. 382. 383. 384. 385. 386. 387. 388. 389. 390. 391. 392. 393. 394. 395. 396. 397. 398. 399. 400. 401. 402. 403. 404. 405. 406. 407. 408. 409. 410. 411. 412. 413. 414. 415. 416. 417. 418. 419. 420. 421. 422. 423. 424. 425. 426. 427. 428. 429. 430. 431. 432. 433. 434. 435. 436. 437. 438. 439. 440. 441. 442. 443. 444. 445. 446. 447. 448. 449. 450. 451. 452. 453. 454. 455. 456. 457. 458. 459. 460. 461. 462. 463. 464. 465. 466. 467. 468. 469. 470. 471. 472. 473. 474. 475. 476. 477. 478. 479. 480. 481. 482. 483. 484. 485. 486. 487. 488. 489. 490. 491. 492. 493. 494. 495. 496. 497. 498. 499. 500. 501. 502. 503. 504. 505. 506. 507. 508. 509. 510. 511. 512. 513. 514. 515. 516. 517. 518. 519. 520. 521. 522. 523. 524. 525. 526. 527. 528. 529. 530. 531. 532. 533. 534. 535. 536. 537. 538. 539. 540. 541. 542. 543. 544. 545. 546. 547. 548. 549. 550. 551. 552. 553. 554. 555. 556. 557. 558. 559. 560. 561. 562. 563. 564. 565. 566. 567. 568. 569. 570. 571. 572. 573. 574. 575. 576. 577. 578. 579. 580. 581. 582. 583. 584. 585. 586. 587. 588. 589. 590. 591. 592. 593. 594. 595. 596. 597. 598. 599. 600. 601. 602. 603. 604. 605. 606. 607. 608. 609. 610. 611. 612. 613. 614. 615. 616. 617. 618. 619. 620. 621. 622. 623. 624. 625. 626. 627. 628. 629. 630. 631. 632. 633. 634. 635. 636. 637. 638. 639. 640. 641. 642. 643. 644. 645. 646. 647. 648. 649. 650. 651. 652. 653. 654. 655. 656. 657. 658. 659. 660. 661. 662. 663. 664. 665. 666. 667. 668. 669. 670. 671. 672. 673. 674. 675. 676. 677. 678. 679. 680. 681. 682. 683. 684. 685. 686. 687. 688. 689. 690. 691. 692. 693. 694. 695. 696. 697. 698. 699. 700. 701. 702. 703. 704. 705. 706. 707. 708. 709. 710. 711. 712. 713. 714. 715. 716. 717. 718. 719. 720. 721. 722. 723. 724. 725. 726. 727. 728. 729. 730. 731. 732. 733. 734. 735. 736. 737. 738. 739. 740. 741. 742. 743. 744. 745. 746. 747. 748. 749. 750. 751. 752. 753. 754. 755. 756. 757. 758. 759. 760. 761. 762. 763. 764. 765. 766. 767. 768. 769. 770. 771. 772. 773. 774. 775. 776. 777. 778. 779. 780. 781. 782. 783. 784. 785. 786. 787. 788. 789. 790. 791. 792. 793. 794. 795. 796. 797. 798. 799. 800. 801. 802. 803. 804. 805. 806. 807. 808. 809. 810. 811. 812. 813. 814. 815. 816. 817. 818. 819. 820. 821. 822. 823. 824. 825. 826. 827. 828. 829. 830. 831. 832. 833. 834. 835. 836. 837. 838. 839.~~

☐ to accompany the Adverse Party to the following residence,

to obtain personal property.

☒ (E) Grant temporary custody of the minor child(ren) to me.

☐ (F) Order that custody, visitation, and support of the minor child(ren) remain as ordered in the Decree of Divorce/Order entered in Case Number _____ in the _____ Court of the State of _____

1 ☒ (G) Order the Adverse Party to stay at least 100 yards away from the minor child(ren)'s
2 school(s), or day care(s), located at ☐ CONFIDENTIAL

3 (If confidential, do not write name of a school/day care and address here.)

4 ☐ If NOT confidential, write name of school(s)/day care(s) and address(es) below:

5 (1) Name of school or day care Sopulveda Elementary
6 Address 5075 10th Dr
7 City Sparks County Washoe State NV

8 (2) Name of school or day care _____
9 Address _____
10 City _____ County _____ State _____

11 (3) Name of school or day care _____
12 Address _____
13 City _____ County _____ State _____

14 ☐ (H) Order the Adverse Party to stay at least 100 yards away from my place(s) of
15 employment.

16 ☐ (I) Order the Adverse Party to stay at least 100 yards away from the following places,
17 which I or the minor child(ren) frequent regularly:

18 (1) Name _____
19 Address _____
20 City _____ County _____ State _____

21 (2) Name _____
22 Address _____
23 City _____ County _____ State _____

24 (3) Name _____
25 Address _____
26 City _____ County _____ State _____

1 (J) ☒ (1) Prohibit the Adverse Party, either directly or through an agent, from physically
2 injuring or threatening to injure any animal that is owned or kept by the Adverse Party, the
3 minor child(ren), or me.

4 ☒ (2) Prohibit the Adverse Party, either directly or through an agent, from taking
5 possession of any animal owned or kept by me or the minor child(ren).

6 (K) I further request the following other conditions:

7 gives alexis back to me gives Back stolen property
8 Birth certificates Id's social security cards stops
9 Eviction process untill I can move to a safe address
10 with me and my children gets a hair follicle test for
11 Drugs
12
13

14 **IF YOU WISH TO APPLY FOR A HEARING FOR AN EXTENDED ORDER**
15 **FOR PROTECTION COMPLETE THE FOLLOWING INFORMATION**
16

- 17 14. ☒ I request the Court hold a hearing for an EXTENDED ORDER FOR PROTECTION
18 AGAINST DOMESTIC VIOLENCE (which could be in effect for up to one year), and at that
19 hearing the Court issue an Extended Order for Protection Against Domestic Violence and that it
20 include the following relief and any other relief the Court deems appropriate.

(Please check all the choice(s) that may apply to YOU).

21 ☒ (A) Prohibit the Adverse Party, either directly or through an agent, from threatening,
22 physically injuring, or harassing me and/or the minor child(ren).

23 ☒ (B) Prohibit the Adverse Party from any contact with me whatsoever.

24 ☒ (C) Exclude the Adverse Party from my residence and order the Adverse Party to stay at
25 least 100 yards away from my residence.

26 ☒ (D) Grant temporary custody of the minor child(ren) to me.

27 ☒ (E) Grant the Adverse Party visitation with the minor child(ren).

28 ☒ (F) Order the Adverse Party to pay support and maintenance of the minor child(ren). (You
may be required to file an Affidavit of Financial Condition prior to the hearing).

☒ (G) Order the Adverse Party to pay the rent or make payments on a mortgage or pay towards my support and maintenance.

☐ (H) Order that custody, visitation, and support of the minor child(ren) remain as ordered in the Decree of Divorce/Order entered in Case Number _____ in the _____ Court of the State of _____.

☒ (I) Order the Adverse Party to stay at least 100 yards away from the minor child(ren)'s school, or day care, located at: ☐ **CONFIDENTIAL**
(If confidential, do not write name of school and address here).

☐ If address is not confidential, please write name of school or day care and address(es) below:

(1) Name of school or day care Sepulveda Elementary
Address: 5075 Ion Dr
City Sparks County Washoe State NV

(2) Name of school or day care _____
Address _____
City _____ County _____ State _____

3) Name of school or day care _____
Address _____
City _____ County _____ State _____

☒ (J) Order the Adverse Party to stay at least 100 yards away from my place of employment. ☒ **CONFIDENTIAL**
If address is not confidential, please write name of employer and address(es) below:

(1) Name of Employer _____
Address: _____
City _____ County _____ State _____

1 (2) Name of Employer _____

2 Address _____

3 City _____ County _____ State _____

4 (3) Name of Employer _____

5 Address _____

6 City _____ County _____ State _____

- 7
- 8 ☐ (K) Order the Adverse Party to stay at least 100 yards away from the following places,
- 9 which I or the minor child(ren) frequent regularly:

10 (1) Name _____

11 Address: _____

12 City _____ County _____ State _____

13 (2) Name _____

14 Address _____

15 City _____ County _____ State _____

16 (3) Name _____

17 Address _____

18 City _____ County _____ State _____

- 19 ☒ (L) (1) ☒ Prohibit the Adverse Party, either directly or through an agent, from physically
- 20 injuring or threatening to injure any animal that is owned or kept by the Adverse Party,
- 21 the minor child(ren), or me.

22 (2) ☒ Prohibit the Adverse Party, either directly or through an agent, from taking

23 possession of any animal owned or kept by me or the minor child(ren).

24 (3) ☐ I request the Court to specify the arrangements for the possession and care of any

25 animal owned or kept by the Adverse Party, the minor child(ren), or me.

☐ (M) Order the Adverse Party to pay for lost earnings and expenses incurred as a result of my attendance at any hearing concerning this Application.

☒ (N) I further request the following other conditions:

the return of stolen property and allow my plate
to my custody

**I DECLARE UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE
STATE OF NEVADA THAT I HAVE READ THE STATEMENTS CONTAINED IN
THIS APPLICATION, KNOW THE CONTENTS THEREOF, AND BELIEVE THEM
TO BE TRUE AND CORRECT**

Dated: 11/19/16


Signature of Applicant

Megan McCafferty
Applicant's Name (Please Print)